

CHAPTER – 5

NEGLIGENCE

It signifies failure to exercise standard of care which the doer as a reasonable man should have exercised in the circumstances.

Essentials of negligence:

(i) **Duty to take care:** One of the essential conditions of liability for negligence is that the defendant owed a legal duty towards the plaintiff

Grant v. Australian Knitting Mills Ltd - The plaintiff purchased two sets of woolen underwear from a retailer and contacted a skin disease by wearing underwear. The woolen underwear contained an excess of sulphates which the manufacturers negligently failed to remove while washing them. The manufacturers were held liable as they failed to perform their duty to take care.

Donoghue v. Stevenson [Snail-in-the-bottle case]

The persons who are so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called in question

It must also be established that the defendant owed a duty of care towards the plaintiff

Bourhill v. Young- The plaintiff, a fishwife, alighted from a tram car. While she was being helped in putting her basket on her back, a motor-cyclist after passing the tram collided with a motor car at the distance of 15 yards on the other side of the tram and died instantly. The plaintiff could see neither the deceased nor the accident as the tram was standing between her and the place of accident. She had simply heard about the collision and after the dead body had been removed she went to the place and saw blood left on the road. Consequently, she suffered a nervous shock and gave birth to a still-born child of 8 months. She sued the representatives of the deceased motor-cyclist. It was held that the deceased had no duty of care towards the plaintiff and hence she could not claim damages.

(ii) **Breach of duty to take care:** In negligence is that the plaintiff must prove that the defendant committed a breach of duty to take care or he failed to perform that duty.

Municipal Corporation of Delhi v. Subhagwanti- A clock-tower in the heart of the Chandni Chowk, Delhi collapsed causing the death of a number of persons. The structure was 80 years old whereas its normal life was 40-45 years. The Municipal Corporation of Delhi having the control of the structure failed to take care and was therefore, liable.

Glasgow Corporation v Taylor- Poisonous berries were grown in public garden under the control of defendant. A child ate and died. Shrub was not properly fenced nor a notice was displayed. Defendant were liable.

(iii) **Damages** The last essential requisite for the tort of negligence is that the damage caused to the plaintiff was the result of the breach of the duty.

The harm may fall into following classes:

- Harm to body;
- Harm to reputation;
- Harm to property.

RES IPSA LOQUITUR-

It means 'the things itself speaks'. When the accident explains only one thing and that is that the accident could not ordinarily occur unless the defendant had been negligent, the law raises a presumption of negligence on the part of the defendant.

Hambrook v. Stokes Bors. – Soon after parted with her children in a narrow street, a lady saw a lorry violently running down the narrow street. When told by some bystander that a child answering the description of one of her children had been injured, she suffered a nervous shock which resulted in her death. The defendant was held liable.

DEFENCES FOR NEGLIGENCE:

(1) Contributory negligence: It was the Common law rule that anyone who by his own negligence contributed to the injury of which he complains cannot maintain an action against another in respect of it. Because he will be considered in law to be author of his wrong.

Butterfield v. Forrester, (1809) 11 East 60; the defendant had put a pole across a public thoroughfare in Derby, which he had no right to do. The plaintiff was riding that way at 8'O clock in the evening in August, when dusk was coming on, but the obstruction was still visible from a distance of 100 yards, he was riding violently, came against the pole and fell with the horse. It was held that the plaintiff could not claim damages as he was also negligent.

(2) Act of god or vis major

It is such a direct, violent, sudden and irresistible act of nature as could not, by any amount of human foresight have been foreseen or if foreseen, could not by any amount of human care and skill, have been resisted. Such as, storm, extraordinary fall of rain, extraordinary high tide, earth quake etc.

In **Nichols v. Marsland**, (1875) LR 10 Ex.255; the defendant had a series of artificial lakes on his land in the construction or maintenance of which there had been no negligence. Owing to an exceptional heavyrain, some of the reservoirs burst and carried away four country bridges. It was held that, the defendantwas not liable as the water escaped by the act of God.

(3) Inevitable accident

Inevitable accident also works as a defence of negligence. An inevitable accident is that which could not possibly, be prevented by the exercise of ordinary care, caution and skill. it means accident physically unavoidable.

In **Brown v. Kendal**, (1859) 6 Cussing 292; the plaintiff's and defendant's dogs were fighting, while the defendant was trying to separate them, he accidentally hit the plaintiff in his eye who was standing nearby. The injury to the plaintiff was held to be result of inevitable accident and the defendant was not liable.

In **Holmes v. Mather**, (1875) LR 10 Ex.261, 267; a pair of horses were being driven by the groom of the defendant on a public highway. On account of barking of a dog, the horses started running very fast. The groom made best possible efforts to control them but failed. The horses knocked down the plaintiff who was seriously injured, it was held to be an inevitable accident and the defendant was not liable.

In **Stanley v. Powell**, (1891) 1 QB 86; the plaintiff and the defendant, who were members of a shooting party, went for pheasant shooting. The defendant fired at a pheasant, but the shot from his gun glanced off an oak tree and injured the plaintiff. It was held that the accident was an inevitable accident and the defendant was not liable